

Provided that the railway administration is satisfied that the means of communication provided in a train are being misused, it may cause such means to be disconnected in that train for such period as it thinks fit:

Provided further that the Central Government may specify the circumstances under which a railway administration may be exempted from providing such means of communication in any train.

Comment

Section 59 enjoins on a railway administration a duty to provide and maintain efficient means of communication between passengers and the railway servants incharge of the train.

60. Power to make rules in respect of matters in this Chapter.- (1) The Central Government may, by notification, make rules to carry out the purposes of this Chapter.

(2) In particular, and without prejudice to the generally of the foregoing power, such rules provide for all or any of the following matters, namely:-

- (a) the convenience and accommodation (including the reservation of seats or berths in trains) to passengers.
 - (b) The amount of refund for the cancellation of a ticket;
 - (c) The circumstances under which change of names of passengers, having reserved seats or berths, may be permitted;
 - (d) The carriage of luggage and the conditions subject to which luggage may be kept in the cloak rooms at the stations.
 - (e) Diseases which are infections or contagious;
 - (f) The conditions subject to which a railway administration may carry passengers suffering from infectious or contagious diseases and the manner in which carriages used by such passengers may be disinfected;
 - (g) Generally, for regulating the traveling upon, and the use working and management of the railways.
- (3) Any rule made under this section may provide that a contravention thereof shall be punishable with the fine which shall not exceed five hundred rupees.

- (4) Every railway administration shall keep at every station on its railway a copy of all the rules made under this section and shall also allow any person to inspect it free of charge,

Comments

Section 60, sub-clauses (1) and (2) empower the Central Government to make rules regarding carriage of passengers and their luggage under Chapter VIII. The matters in respect of which rules may be made are enumerated in sub-clause(2).

Sub-clauses (3) and (4) empower the Central Government to provide for punishment for contravention of rules, made under this clause and impose an obligation on railway administration to allow the inspection of such rules free of charge.

CHAPTER IX

Carriage of goods

61. Maintenance of rate-books, etc., for carriage of goods.- Every railway administration shall maintain, at each station and at such other places where goods are received for carriage, the rate-books or other documents which shall contain the rate authorized for the carriage of goods from one station to another and make them available for the reference of any person during all reasonable hours without payment of any fee.

Comment

Section 61 imposes an obligation on every railway administration to maintain the rate-books or other documents relating to rates and make them available for reference to any person without payment of any fee.

62. Conditions for receiving, etc., of goods. – (1) A railway administration may impose conditions, not inconsistent with this Act or any rules made there under, with respect to the receiving, forwarding, carrying or delivering of any goods;

(2) A railway administration shall maintain, at each station and at such other places where goods are received for carriage, a copy of the conditions for the time being in force under sub-section (1) and make them available for the reference of any person during all reasonable hours without payment of any fee.

Comment

Section 62 empowers railway administration to impose conditions with respect to receiving, forwarding, carrying or delivering of goods and